

HOUSE No. 2195

The Commonwealth of Massachusetts

PRESENTED BY:

Michael S. Day, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to improve the quality of mental health services, and rights of patients, by providing for sufficient privacy.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Vincent Lawrence Dixon</i>	<i>60 Lake Street Unit N, Winchester, MA 01890</i>	<i>1/17/2025</i>

HOUSE No. 2195

By Representative Day of Stoneham (by request), a petition (accompanied by bill, House, No. 2195) of Vincent Lawrence Dixon for legislation to improve the quality of mental health services and rights of patients by providing for sufficient privacy. Mental Health, Substance Use and Recovery.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 1976 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to improve the quality of mental health services, and rights of patients, by providing for sufficient privacy.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The Massachusetts General Laws are hereby amended by inserting the
2 following new chapter:

3 1.) An Act to improve the quality of mental health services, and rights of patients, by
4 providing for sufficient privacy.

5 2.) All individuals, who present themselves, for mental health services, and/or are
6 admitted for such services, and/or assessment, shall be entitled to a specific private intake room,
7 or physical space, where only they, medical staff, and relevant security, may hear any intake,
8 and/or treatment conversations.

9 3.) These provisions, may not be waived, except in extreme emergency circumstances;
10 which shall be specifically noted, and recorded in a medical record, and the reasons therefore, by
11 responsible medical, and intake staff.

12 4.) In the context, of significant, and substantial reductions in funding, for various
13 medical services, including mental health services, it has occurred that patients being seen for
14 intake, and/or treatment, have been seen in open wards, and/or emergency general settings,
15 without privacy. This can have various effects, in denying privacy, diminishing the provision of
16 needed information between medical staff, and actual or potential patients, compromising
17 important treatment discussions; and/or discouraging various forms of intake, by individuals,
18 who are concerned about risks of disclosure.

19 5.) It is in the interests of public policy, that such inherent violations, of needed
20 confidentiality, be reduced, and/or eliminated to the extent possible, by various measures.

21 6.) The Massachusetts Department of Public Health (DPH), and its Public Health Council
22 (PHC), are hereby authorized to develop, establish, and enforce the needed regulations, to carry
23 out the intent of this legislation.